

# CDB Overpayment — Appeal & Request Not to Repay

*For AISH recipients who got a Notice of Overpayment about the Canada Disability Benefit*

## START HERE — is this form for you?

Did AISH send you a LETTER (a “Notice of Overpayment”) saying you owe money back because of the Canada Disability Benefit?

**YES — a letter with an amount, a period, and a reason: this form is for you. Use it.**

**NO — only \$200 is coming off my cheque, no letter: that is the regular monthly clawback, not an overpayment. This form is not for you yet — keep it ready in case a letter comes.**

NOT SURE: if you have no letter stating an amount you owe, you do not have an overpayment notice yet.

## WHAT THIS FORM DOES

If AISH sent you a Notice of Overpayment about the Canada Disability Benefit, this form does the two things the government allows in one document: it appeals the overpayment, and it asks AISH not to make you repay it. You send it to two places — both are on the last page.

## HOW TO USE THIS FORM

1. Fill in your information and copy the overpayment details straight from your letter (page 2).
2. Check the reasons that are true for you, and tell them what happened in your own words (page 3).
3. Fill in the hardship section — it is what gets your repayment lowered or cancelled (page 4).
4. Sign and date.
5. Send it to both places on the last page within 30 days of your letter. Keep your sent emails as proof.

**WHERE IT GOES: the Appeals Secretariat (to appeal) and your AISH office (to ask them not to repay). Last page.**

## 1. YOUR INFORMATION

|                  |                      |       |                      |
|------------------|----------------------|-------|----------------------|
| Full legal name  | <input type="text"/> | Date  | <input type="text"/> |
| AISH file number | <input type="text"/> | Phone | <input type="text"/> |
| City / Town      | <input type="text"/> | Email | <input type="text"/> |

## 2. THE OVERPAYMENT YOU ARE APPEALING

Copy these straight from your Notice of Overpayment letter. If your letter does not state all of the amount, the period, and the reason, say so in your statement on page 3 — the program must give you that in writing, and not getting it is itself a reason to challenge the decision.

|                                  |                      |                                 |                      |
|----------------------------------|----------------------|---------------------------------|----------------------|
| Amount of overpayment claimed \$ | <input type="text"/> | Date on your overpayment notice | <input type="text"/> |
| Period affected — start          | <input type="text"/> | Period affected — end           | <input type="text"/> |

I am appealing (check all that apply):

- ☐ That I have an overpayment at all.
- ☐ The requirement that I repay it.
- ☐ Both — that I have an overpayment, and the requirement to repay it.

### 3. WHY THIS OVERPAYMENT SHOULD BE CANCELLED

Check every reason that is true for you. One is enough to ask for the overpayment to be waived; more is stronger.

- ☐ This overpayment came from a government policy decision — the clawback of the Canada Disability Benefit — not from anything I did wrong.
- ☐ I reported my changes to AISH. I did not hide anything or fail to disclose a material fact.
- ☐ I did not give false information about my income, assets, or situation to get a benefit I was not entitled to.
- ☐ My disability or medical condition played a part in how this situation came about.
- ☐ I did not know I was receiving anything I was not entitled to. The Canada Disability Benefit was issued by the federal government, and I had no control over its timing or amount.
- ☐ Paying this back would cause me real hardship. My income does not allow repayment without leaving me unable to cover food, shelter, and medication.
- ☐ I did not end up with more than I would have received if the Canada Disability Benefit had been paid to me monthly instead of as one lump sum.

### 4. IN MY OWN WORDS

Tell them what happened, and why making you repay would be wrong or cause hardship.

*Maximum: 2000 characters.*

## 5. FINANCIAL HARDSHIP

This is the part that gets repayment lowered or cancelled, so fill it in. If you do have to repay, AISH normally takes 10% of your living allowance each month — but if that leaves you unable to meet basic needs, you can ask for it to be lowered, suspended, or written off entirely.

Monthly income (AISH)

Monthly rent / housing

Monthly medication / medical

Dependents in household

Other hardship (disability costs, caregiving, transportation, etc.)

## 6. SIGNATURE

Signature (type your full name)

Date

### 7. WHERE TO SEND THIS

This form does two jobs. Send it to both places below, and keep each sent email as your proof. Subject line to copy: “Appeal and Request Not to Repay — CDB Overpayment — [your name] — [file number]”.

**TO APPEAL — Appeals Secretariat (this preserves your right to a hearing):**

Email: [alss.appeals@gov.ab.ca](mailto:alss.appeals@gov.ab.ca) Fax: 780-422-1088

Mail: 2nd Floor, Agronomy Centre, 6903 116 Street NW, Edmonton, AB T6H 5Z2, or any AISH office.

**TO ASK AISH NOT TO REQUIRE REPAYMENT — send a copy to your AISH office:**

Send a copy to your AISH worker or the office that holds your file. If you are not sure which office that is, call Alberta Supports at 1-877-644-9992 to be routed (in Alberta, dial 310-0000 first to call any toll-free number free of charge).

**FOR THE RECORD (optional):**

Minister Nathan Neudorf — [alss.minister@gov.ab.ca](mailto:alss.minister@gov.ab.ca) · Your MLA — [assembly.ab.ca](mailto:assembly.ab.ca)

### 8. YOUR RIGHTS

- You have 30 days from the date on your Notice of Overpayment to appeal. Collection does not start until that window closes or your appeal is decided.
- You can appeal two things: that you have an overpayment at all, and that you must repay it.
- You can also ask AISH, in writing, not to require repayment. You can do both — this form does both.
- If you have already missed the 30 days, you can ask the Appeals Secretariat for more time under section 10(4) of the AISH Act.
- If you do have to repay, AISH normally recovers 10% of your living allowance per month. Ask for it to be lowered, suspended, or written off if it causes hardship.
- Do not sign any Voluntary Repayment Agreement until your appeal is decided — signing one can waive your right to appeal.

*Based on the Assured Income for the Severely Handicapped Act and the Application and Appeals (Ministerial) Regulation. Sources: [alberta.ca/aish-overpayments](http://alberta.ca/aish-overpayments) and [alberta.ca/appeal-aish-decision](http://alberta.ca/appeal-aish-decision). This is information, not legal advice.*